Estate of Wilma Jean Strain, a/k/a Wilma Jean Green
Cause 548650 | County Probate Court No. 4 | Harris County, Texas

DECEDENT	Estate of Wilma Jean Strain, a/k/a Wilma Jean Green
DATE OF DEATH	_____
COUNTY OF DEATH	Harris
CAUSE	548650 in the County Probate Court No. 4, Harris County
PREPARED	8 November 2026

AFFIDAVIT OF HEIRSHIP

Tex. Est. Code ch. 205, small estate affidavit | filed with the clerk of the County Probate Court No. 4

Before me, the undersigned authority, personally appeared the affiants named below, who swore that the following is true.

1. THE DECEDENT

Estate of Wilma Jean Strain, a/k/a Wilma Jean Green died intestate in Harris County, Texas, on _____, more than thirty days before this affidavit. No petition for the appointment of a personal representative is pending and none has been granted. A copy of the death certificate is attached.

2. THE ESTATE, AND THE CAP

The value of the estate assets, excluding homestead and exempt property, does not exceed $75,000. Assets and liabilities, with the exempt items marked:

Asset / approximate value / exempt? _____

_____

Liabilities _____

If the estate is over $75,000 this route is closed and the administration run applies instead.

3. THE FAMILY HISTORY, WHICH IS WHAT THE JUDGE READS

Fill every line. A missing brother is the usual reason an affidavit comes back.

1. The decedent's spouse, or that there was none: _____
2. Each child, living or dead, with the date of any death: _____
3. Where a child died first, that child's own children: _____
4. The decedent's father and mother, with dates of death if dead: _____
5. Brothers and sisters, including half blood: _____
6. Any prior marriage, and any child of it: _____

4. WHY EACH DISTRIBUTEE TAKES

Under Tex. Est. Code § 201.001(b) the estate descends to the children equally, and to the children of a dead child by representation under § 201.101. With a surviving spouse the community half passes to the spouse and the children take two thirds of the separate personal property, § 201.002(b). Each distributee's share and the section it comes from:

Name / relationship / share / section

_____

_____

5. EACH DISTRIBUTEE, WITH CURRENT ADDRESS

6. THE OATH

Each affiant signs before a notary. Two disinterested witnesses are required, meaning two people who know the family facts and take nothing from the estate. A distributee signs too. A minor or an incapacitated distributee is signed for by the guardian or next of kin.

Affiant 1, distributee _____ Sworn before me _____

Affiant 2, disinterested witness _____ Sworn before me _____

Affiant 3, disinterested witness _____ Sworn before me _____

7. WHAT GOES TO THE CLERK, IN THIS ORDER

1. This affidavit, every page, originals only, notarised where marked.
2. The death certificate, certified copy.
3. Each distributee's photo identification.
4. The clerk's filing fee. Call Harris County first and ask the amount for a ch. 205 affidavit; it changes.
5. Ask for the judge's approval under § 205.003 and get the file stamp on your copy before you leave the counter.

8. AFTER APPROVAL

The approved affidavit and a copy of it go to each holder of the decedent's money or property, per § 205.004. A bank that has the approved copy and the identification releases without a letters of administration. If a holder refuses, ask the clerk which local rule they want cited and send the refusal up.

Prepared by Kolsinger desk from the public file in Cause 548650. Drafting and records only. We do not appear, file or advise; the signature and the filing stay with the heir. Free copy, no fee owed. Refund and revisions do not apply to a free packet.
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